

Human Resources Management Policy

1. Introduction

1.1 Purpose

This Policy and the Policies and Procedures and related documentation set out in section 1.5 below (**Related Documentation**) supports {org.name} to apply the Human Resources Management and Continuity of Support NDIS Practice Standards.

1.2 Policy Aims

In this regard, {org.name} is committed to ensuring the following outcomes:

- (a) **(Human Resources Management)** each participant's support needs are met by workers who are competent in relation to their role, hold relevant qualifications, and who have relevant expertise and experience to provide person-centred support.
- (b) **(Continuity of Support)** Each participant has access to timely and appropriate support without interruption.

1.3 NDIS Quality Indicators

In this regard, {org.name} aims to demonstrate each of the following quality indicators through the application of this Policy and the relevant systems, procedures, workflows and other strategies referred to in this Policy and the Related Documentation:

Human Resources Management

- (a) The skills and knowledge required of each position within a provider are identified and documented together with the responsibilities, scope and limitations of each position.
- (b) Records of worker pre-employment checks, qualifications and experience are maintained.
- (c) An orientation and induction process is in place that is completed by workers including completion of the mandatory NDIS worker orientation program.
- (d) A system to identify, plan, facilitate, record and evaluate the effectiveness of training and education for workers is in place to ensure that workers meet the needs of each participant. The system identifies training that is mandatory and includes training in relation to staff obligations under the NDIS Practice Standards and other National Disability Insurance Scheme rules.
- (e) Timely supervision, support and resources are available to workers relevant to the scope and complexity of supports delivered.
- (f) The performance of workers is managed, developed and documented, including through providing feedback and development opportunities.
- (g) Workers with capabilities that are relevant to assisting in the response to an emergency or disaster (such as contingency planning or infection prevention or control) are identified.
- (h) Plans are in place to identify, source and induct a workforce in the event that workforce disruptions occur in an emergency or disaster.
- (i) Infection prevention and control training, including refresher training, is undertaken by all workers involved in providing support to participants.
- (j) For each worker, the following details are recorded and kept up to date:

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- (1) their contact details; and
- (2) details of their secondary employment (if any).

Continuity of Supports

- (a) Day-to-day operations are managed in an efficient and effective way to avoid disruption and ensure continuity of support.
- (b) In the event of worker absence or vacancy, a suitably qualified and/or experienced person performs the role.
- (c) Support is planned with each participant to meet their specific needs and preferences. These needs and preferences are documented and provided to workers prior to commencing work with each participant to ensure the participant's experience is consistent with their expressed preferences.
- (d) Arrangements are in place to ensure support is provided to the participant without interruption throughout the period of their service agreement. These arrangements are relevant and proportionate to the scope and complexity of supports delivered by the provider.
- (e) Alternative arrangements for the continuity of supports for each participant, where changes or interruptions are unavoidable, are:
 - (1) explained and agreed with them; and
 - (2) delivered in a way that is appropriate to their needs, preferences and goals.

1.4 Scope

- (a) This Policy applies to the provision of all workers at {org.name}.
- (b) All permanent, fixed term and casual staff, contractors and volunteers are required to take full responsibility for ensuring full understanding of the commitments outlined in this Policy.
- (c) The relevant persons specified in the column corresponding to a procedure described in this Policy have the responsibility to implement the relevant systems, procedures, workflows and other strategies referred to in the relevant procedure.

1.5 Related Documentation

The application of the above NDIS Practice Standards by {org.name} is supported in part by and should be read alongside the Policies and Procedures and related documentation corresponding to this Policy in the Policy Register.

2. Definitions

In this Policy:

{org.name} means {org.legal_name} ABN {org.abn}

Client means a client of {org.name} (including an NDIS participant).

Key Management Personnel means {org.primary_contact.name}, {org.signatory.name} and other key management personnel involved in {org.name} from time to time.

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Legislation Register means the register of legislation, regulations, rules and guidelines maintained by {org.name}.

Policy Register means the register of policies of {org.name}.

Principal means {org.primary_contact.name} and {org.signatory.name}.

Risk Assessed Role means:

- (a) Key Management Personnel from time to time or a person or an entity as defined in s 11A of the National Disability Insurance Scheme Act 2013 (for example, a CEO or a Board Member)
- (b) a person providing the direct delivery of specified supports or services to a person with disability
- (c) a person that is likely to require 'more than incidental contact' with people with disability, which includes:
 - (1) physically touching a person with disability; or
 - (2) building a rapport with a person with disability as an integral and ordinary part of the performance of normal duties; or
 - (3) having contact with multiple people with disability as part of the direct delivery of a specialist disability support or service, or in a specialist disability accommodation setting.

Worker Competency means a Worker who has been trained and assessed as competent by a person deemed suitably skilled by {org.name} to safely and appropriately perform a specified task as a worker.

Worker means a permanent, fixed term or casual member of staff, a contractor or volunteer employed or otherwise engaged by {org.name} and includes the Principal.

3. Policy Statement

3.1 General

- (a) {org.name} has implemented a human resource management system that complies with relevant state and Commonwealth employment legislation.
- (b) Workers are valued and recognised for their contribution to successful outcomes for the organisation.
- (c) {org.name} provides an equitable, safe and encouraging workplace.
- (d) Unacceptable Conduct (as defined under the Work Health and Safety Policy) is not tolerated.

3.2 Recruitment and Selection

- (a) All key Worker positions at {org.name} have a position description which outlines the:
 - (1) position's primary functions;

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- (2) responsibilities and performance indicators of the position;
 - (3) essential and desirable skills and required knowledge, qualifications and experience of the position; and
 - (4) scope and limitations of the position.
- (b) 100 points of ID in addition to NDIS workers screening clearance, proof of vaccination for mandatory vaccinations (COVID-19, influenza etc), NDIS worker orientation program, Department of Health COVID-19 training are required for verification by {org.name} before the commencement of the work engagement for all persons in a Risk Assessed Role.
- (c) {org.name} requires all Workers to complete a Pre-Employment Collection Form to assist {org.name} to confirm secondary employment and complete relevant screening checks and confirm reference checks. {org.name} securely maintains individual personnel files for each employee (and where appropriate, other Workers), where information in respect of the employee's recruitment, position description, pre-employment checks, employment contract, salary payments, performance, training and development is kept.

3.3 Induction and Orientation

- (a) Each new Worker participates in an induction and orientation process and training to familiarise the Worker with {org.name}'s purpose, operations, expectations of them and requirements of the position.
- (b) As part of the process, the new Worker completes the mandatory NDIS worker orientation program and the Department of Health's COVID-19 Infection Control Training.
- (c) Flexible and supportive working conditions are provided in line with applicable legislation in a manner comparable to industry standards.
- (d) {org.name} acknowledges that properly trained Workers are a valuable asset.
- (e) {org.name} makes every effort to nurture and support Workers in the performance of their work by providing relevant training and development opportunities.

3.4 Taking Leave

- (a) Workers are entitled to leave in accordance with applicable state and Commonwealth law.
- (b) Workers are encouraged to regularly take leave and to not accrue significant amounts of leave.
- (c) Worker leave requests are managed to ensure clients have continuity of service and support.

3.5 Training and Development

- (a) {org.name} maintains a training system to identify, plan, facilitate, record and evaluate the effectiveness of training and education for Workers and to ensure that each Worker meets and exceeds the essential and desirable skills and required knowledge of their position and the needs of each client. The system identifies training that is mandatory and includes training in relation to staff obligations under the NDIS Practice Standards and other National Disability Insurance Scheme rules (as relevant to the Worker).
- (b) Workers and {org.name} collaborate to build a continuous professional development (CPD) culture. It is:
 - (1) the Worker's and the Principal's collective responsibility to seek new learning opportunities for the Worker.

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- (2) the Principal's responsibility to coach Workers and identify development needs to facilitate any development activities and processes.
- (c) Supervision, support and resources are available to Workers relevant to the scope and complexity of supports delivered. All Workers are closely supervised when starting a new position at {org.name}.
- (d) All employees undertake an annual performance review where the performance of Workers is formally managed, developed and documented, including through providing formal feedback and development opportunities. Informal feedback is provided on an ongoing basis.

3.6 Continuity of Supports

- (a) {org.name} manages planned and unplanned absences in a structured, efficient and effective way to avoid disruption and ensure continuity of support.
- (b) In the event of Worker absence or vacancy, a suitably qualified and/or experienced person performs the role in accordance with our Business Continuity Plan.
- (c) Support is planned with each client to meet their specific needs and preferences. These needs and preferences are documented and provided to Workers prior to commencing work with each participant to ensure the participant's experience is consistent with their expressed preferences.
- (d) Arrangements with agencies are in place to ensure support is provided to the client without interruption throughout the period of their Service Agreement.
- (e) Where changes or interruptions are unavoidable, alternative arrangements are explained and agreed with the participant.
- (f) Where applicable, disaster preparedness and planning measures are in place to enable continuation of critical support before, during and after a disaster.

4. Procedure

The Policy is supported by the following Procedures which are intended to clarify the responsibilities of the Principal, Key Management Personnel and other Workers and make explicit the underlying principles of the Policy. The Procedures work together dynamically and are relevant to all parts of {org.name}. The Procedures are not ordered in priority and all are important to achieving the aims of the Policy Statement.

Procedure	Responsibility
4.1 General (a) Ensure that this Policy does not breach any of {org.name}'s legal obligations including relevant state and Commonwealth employment legislation. (b) Ensure that all Workers are treated fairly and with respect. (c) Ensure that all {org.name} workplaces are free from Unacceptable Conduct as set out in the Work Health and Safety Policy and applicable state and Commonwealth employment legislation. (d) Ensure all Workers are provided fair and safe working conditions as set out in the Work Health and Safety Policy and applicable state and Commonwealth employment legislation.	Principal and Key Management Personnel

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4.2 Recruitment and Selection (a) Seek to appoint the best possible candidate for all positions. (b) Advertise vacant positions through relevant media, sector channels and recruitment agencies, as appropriate. It may not be appropriate to advertise a particular vacant position externally if: (1) the position is available for a short period of time only; (2) advertising the position would significantly delay the commencement/continuation of the position activities and impact on compliance with performance requirements and relevant NDIS Practice Standards (for example, in respect of providing clients with Continuity of Supports); or (3) a suitable candidate from within the organisation is identified. (c) The recruitment and selection of permanent or contract-based staff follows a formal process which covers the matters set out below. (d) The selection and recruitment of staff is merit based with the best possible candidate identified through their curriculum vitae, interview process, reference checks and responses to the position selection criteria (if applicable). (e) All staff positions at the organisation have a position description which outlines the: (1) position's primary functions responsibilities and performance indicators of the position; (2) essential and desirable skills and required knowledge, qualifications and experience of the position; (3) scope and limitations of the position; and (4) relevant screening checks which are required being: (A) 100 points of ID (including one primary and one secondary form of identification); (B) a document indicating the Worker's Right to Work in Australia; (C) an NDIS workers screening clearance to be carried out by the candidate or {org.name} prior to the commencement of work if the candidate is in a Risk Assessed Role; (D) the mandatory NDIS worker orientation program; and (E) the Department of Health COVID-19 Infection Control Training. (f) All position advertisements will identify the: (1) position title	Principal and Key Management Personnel
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(2) a summary of the position description which includes the: (A) position's primary functions; (B) responsibilities and performance indicators of the position; (C) essential and desirable skills and required knowledge, qualifications and experience of the position; (D) scope and limitations of the position; (3) the process for applying (4) contact details for enquiries (5) application closing date (if known). (g) All potential candidates are provided with the following information upon request: (1) relevant parts of the position description; (2) links to the organisation's website (if applicable); (3) the process and documents required for applying; (4) contact details for enquiries; and (5) other information as relevant. (h) All applications received are formally acknowledged in writing (unless otherwise stated in the position description). (i) Where practical, at least 3 – 5 candidates that meet the essential skills, knowledge and experience of the position are offered an interview. Candidates that meet some but not all of the desirable skills, knowledge and experience may be offered an interview depending on the number and quality of other candidates. (j) Interviewees are rated against the essential skills, knowledge and experience as well as interview questions relevant to the position.	
Successful candidates (a) All successful interviewees receive: (1) formal acknowledgement in writing; and (2) a Pre-Employment Collection Form; (b) Unless otherwise agreed, the candidate's remuneration package is agreed at or before the time of offer of the position. (c) The completed Pre-Employment Collection Form requires the Worker to disclose information required to confirm secondary employment, confirm screening checks and check employment references.	

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(d) Unless otherwise determined, all permanent or contract-based staff are subject to a three (3) month probationary period beginning at the commencement of their employment or engagement (as applicable). (e) An NDIS workers screening clearance will be carried out before commencement of employment or engagement in respect of all Workers in a Risk Assessed Role (unless relevant state laws allow the Worker to begin working in a Risk Assessed Role once they have submitted an application for an acceptable check under transitional or special arrangements). (f) If screening checks are to be undertaken by the candidate, they will be verified by {org.name} before the commencement of employment or engagement (as applicable). (g) Relevant reference checks should be carried out prior to commencement of employment or engagement in respect of all Workers (not just permanent or contract based employees). (h) In addition to reference checks, candidates should be required to provide satisfactory evidence of their qualifications and experience. (i) All position enquiries, applications and interviews are treated confidentially. Access to such details is restricted to those directly involved in the recruitment and selection process. (j) Records of all information gathered from Workers as part of the recruitment and selection process are kept confidential in the Worker's personnel file. This includes information relating to all screening checks, pre-engagement correspondence, evidence of Worker qualifications and experience. Further information on record keeping is set out below.	
4.3 Induction and orientation (a) At or before the commencement of employment, each new employee receives an orientation pack which includes: (1) the position description; (2) a Pre-Employment Collection Form (if it has not yet been provided); (3) the Worker Declarations; (4) the Staff Induction Checklist; (5) the Worker's Training and Development Register; (6) an employment agreement or offer letter (if applicable); and (7) The Policies of {org.name}. (b) All new Workers participate in an induction and orientation process: (1) to familiarise the new Worker with {org.name}'s purpose, operations, services and support delivery, expectations and	Principal and Key Management Personnel

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requirements of the position; (2) to confirm any secondary employment that the Worker may hold; (3) to ensure that the Worker understands their position description; (4) to ensure that the Worker Declarations and Staff Induction Checklist have been completed and signed; (5) where the Worker provides to {org.name} all documents and completes all training and other tasks referred to in the Staff Induction Checklist, Worker Declarations and Position Description which are required under those documents to be provided to {org.name} and {org.name} examines and verifies the same; and (6) where {org.name} provides to the Worker all documents referred to in the Staff Induction Checklist and Worker Declarations which are required under those documents to be provided by {org.name}. (c) (Worker Screening) As part of the orientation and induction process, {org.name} must take steps to ensure that any Worker (including a worker obtained through a contractor or an individual contractor), in a Risk Assessed Role, has an NDIS worker screening clearance or is subject to the transitional and special arrangements, in circumstances which, {org.name} is complying with those transitional and special arrangements. The link sets out the relevant arrangements in each state and territory for workers who have submitted an application for an NDIS Worker Screening Check. (d) (Working with Children Check) As part of the orientation and induction process, {org.name} must take steps to ensure that any Worker (including a worker obtained through a contractor or an individual contractor), in a Risk Assessed Role, has a WWCC (if applicable) or hold a valid exemption pursuant to State Legislation. (e) (Contractors) Any Worker obtained through a contractor must only be allowed to engage in a risk assessed role if the registered NDIS provider has: (1) identified to the contractor each risk assessed role that the individual will engage in; (2) entered into an appropriate contract with the contractor for that staff member. An appropriate contract must meet the specific requirements listed in section 5A of the Worker Screening Rules; and (3) taken reasonable steps to satisfy itself that the individual has an NDIS worker screening clearance. (f) (NDIS Practice Standards) The induction and orientation process will also include training concerning Worker obligations under the NDIS Practice Standards, other National Disability Insurance Scheme rules, the NDIS Code of Conduct and the conditions of registration stated on	
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{org.name}'s certificate of registration as a registered NDIS provider, as applicable to the Worker's position and profession.	
(g) (Policies) In particular, each Worker that provides supports and services to clients will be provided training with respect to the rights of clients and the subject matter of the following {org.name} Policies:	
this Policy	
(1) Choice Advocacy and Control Policy (2) Diversity Policy (3) Preventing and Responding to Violence, Abuse, Neglect, Exploitation and Discrimination Policy (4) Privacy Policy (5) Promoting and Protecting Rights Policy (6) Feedback and Complaints Management Policy (7) Incident Management and Reporting Policy (8) Quality Management and Continuous Improvement Policy (9) Risk Management Policy (10) Emergency and Disaster Preparedness Policy (11) Conflict of Interest Policy (12) Work Health and Safety Policy (13) COVID-19 Pandemic Management Policy (14) Governance Policy (15) Information Management Policy (16) Provision of Supports Policy (17) Client Money and Property Policy (18) Mealtime Management Policy (19) Supported Independent Living Policy (20) Support Coordination Policy (21) Management of Medication Policy (22) Waste Management Policy (23) Implementing Behaviour Supports Plans Policy & Procedures	

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(24) Specialist Support Coordination Policy (25) Specialist Behaviour Support Policy and Procedures (h) As part of the orientation and induction process, each Worker must complete the mandatory NDIS Worker orientation program and the Department of Health COVID-19 Infection Control Training.	
4.4 Supervision of Workers (a) To the extent practicable, each Worker in a new role shadows another suitably experienced Worker in the same or similar position at {org.name} for the first two weeks in the new role. (b) Close supervision will continue for the remainder of the probationary period and until such time as the Principal or Key Management Personnel are confident in the Worker's ability to deliver quality services and support to clients in accordance with {org.name} Policies. (c) Appropriate supervision, support and resources are otherwise made available to all Workers relevant to the scope and complexity of services and supports delivered, upon request or where the Principal or Key Management Personnel identifies the need. (d) (Workers without NDIS Worker Screening Checks) If {org.name} engages a Worker in a Risk Assessed Role who does not have an NDIS worker screening clearance (for example, if {org.name} is subject to the transitional and special arrangements and {org.name} is complying with those arrangements, then that Worker must be supervised.	All Workers

4.5 Ongoing training and development All employees are entitled to training and development at {org.name} including as follows: (a) (Training opportunities) The following training and development opportunities are encouraged and approved to promote Worker Competency: (1) formal training sessions (internal or external) (2) coaching and mentoring (3) participating in approved conferences (4) on-the-job training (5) job shadowing (6) job rotation. (b) (Subscriptions and periodicals) As part of our training and development program, {org.name} arranges subscriptions and educational material to assist Workers to develop in their day to day role and to promote Worker Competency. This may include subscriptions to NDIS Issues and Updates provided by NDS (nds.org.au) and NDIS Quality and Safeguards	All Workers
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Commission Provider Alerts. (c) If a Worker wants an additional subscription(s), they should contact the Principal or Key Management Personnel and, If appropriate, the subscription will be made available to Workers that the subscription will benefit. (d) (Worker Competency) Training may be organised for specific individuals to promote Worker Competency in services and support delivery (e.g. due to inadequacies in performance, to gain new qualifications, skills or knowledge or as a result of a change to their role). (e) (Internal training) All Workers will be required to participate in mandatory refresher training organised by {org.name}. Among other things, training will be in respect of the following: (1) (NDIS Practice Standards) Worker obligations under the NDIS Practice Standards, other National Disability Insurance Scheme rules, the NDIS Code of Conduct and the conditions of registration stated on {org.name}'s certification of registration as a registered NDIS provider, as applicable to the Worker's position and profession; (2) (Infection control) COVID-19 and infection control training; (3) (Human Rights) the rights of clients and the subject matter of {org.name} Policies and procedures, as applicable to the Worker's position and profession; and (4) (Training and Development Register) other matters set out in the Training and Development Register. (f) (Online courses) If a Worker is not already subject to continuing professional development obligations, the Worker must undertake at least 10 hours of continuous professional development training for each year of service at {org.name}. Courses may include the following provided by National Disability Services (NDS): (1) <u>Human Rights and You e-Learning Program</u> (2) <u>Disability Safe eLearning Program</u> (3) <u>Preventing and Responding to Violence, Abuse, Neglect and Exploitation</u> (4) <u>Work With Diverse People</u> (5) <u>Disability Aware: An awareness and inclusion program</u> (6) <u>COVID-19: What it is and how to prevent spread</u> (7) <u>Supported Decision Making (e-Learning module)</u> (8) <u>Work Health and Safety (WHS) awareness and duty of care</u> (9) <u>Back Yourself: Unpacking manual tasks</u>	
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and such other courses reasonably determined by {org.name}.

- (g) **(Identifying external training opportunities)** All Workers are responsible for continuous learning and for identifying development and training opportunities. Workers should show a willingness to improve by asking the Principal or Key Management Personnel for direction and advice.
- (h) Workers and the Principal are responsible for finding the best ways to foster continuous professional development for Workers. They should experiment with job rotation, job shadowing and other types of on-the-job training (without unduly disrupting daily support provision).
- (i) Employees are also encouraged to undertake self-paced learning. For example, through self-study for the abovementioned online courses and educational material.
- (j) In addition, Workers are encouraged to discuss potential external training programs, topics or methods outside of those specified above, which are related to their role and which they are interested in pursuing.
- (k) If the external training and development is deemed appropriate by the Principal or Key Management Personnel with reference to the cost, training content and role of the Worker, the Principal will organise and make arrangements for the Worker to attend the external training.
- (l) In cases where {org.name} agrees to pay for the external training and does not pay for it directly, the Worker will have to pay and send invoices or receipts to {org.name} in respect of any agreed amount which {org.name} agrees to bear in respect of the cost of the external training. The Principal will approve employee reimbursement according to this information.
- (m) If a Worker decides to not attend or cancel the external training, they must inform {org.name} immediately. In such circumstances, they will be required to bear any cancellation or other fees.
- (n) In cases where the external training includes an examination or assessment component, Workers must share the results of the examination or assessment with {org.name}. If they do not pass the exam, they can retake it at their own expense.
- (o) All employee development efforts should respect cost and time limitations, as well as individual and business needs.
- (p) **(Use of Leave)** Employees will not be required to pay or use leave for most training, subject to first obtaining the prior approval of {org.name}.
- (q) **(Presenters)** The Principal or other external experts may be utilised to train Workers from time to time, depending on the scope of the training.
- (r) **(Worker record keeping)** Workers will be required to keep records of attendance and completion of all training.
- (s) **(Principal and Worker evaluation)** Both {org.name} and the Worker should evaluate individual training sessions and any successful outcomes arising from training efforts. They should keep records of the training evaluation for reference. Written and informal feedback should be shared

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between the parties to improve training opportunities moving forward. (t) (Application of knowledge) Workers should try to make the most out of their training by applying their learned knowledge to their day to day work.	
4.6 Payment obligations (a) Pay employees fortnightly or monthly depending on their position by electronic funds transfer to a bank account or accounts nominated by the employee as indicated on the Staff Details Form. (b) Make employee related superannuation contributions in accordance with the <i>Superannuation Guarantee (Administration) Act 1992 (Commonwealth)</i>. Employees are required to elect a complying superannuation fund for payments within two (2) weeks of commencement, otherwise, the organisation will elect a complying fund. (c) Comply with relevant PAYG withholding and remittance obligations and single touch payroll obligations. (d) Use {org.name} financial and accounting software to facilitate compliance with Worker payroll, superannuation, PAYG and leave obligations.	Principal and Key Management Personnel
4.7 Record-keeping and pay slips (a) (Use of accounting software) Use {org.name} financial and accounting software to facilitate compliance with the HR record keeping obligations set out below. (b) (Payslips) Issue payslips to employees within 1 working day of a pay day, even if an employee is on leave. (c) (General records) Make and keep accurate and complete records for all employees and other Workers (eg. time worked and wages paid). (d) Ensure records are: (1) in a form that is readily accessible to a Fair Work Inspector (2) in a legible form and in English (preferably in plain, simple English) (3) kept for seven years (4) not altered unless to correct an error (5) not false or misleading to {org.name}'s knowledge. (e) Keep employee records private and confidential. Generally, no one can access them other than the employee, the Principal and Key Management Personnel, and relevant payroll staff. (f) Make copies of an employee's records available at the request of an employee or former employee. (g) (Employment summary) Keep a general employment summary which includes the following:	Principal and Key Management Personnel

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(1) {org.name}'s name (2) {org.name}'s Australian Business Number (ABN) (if any) (3) the employee's name (4) the employee's commencement date (5) the basis of the employee's employment (full or part-time and permanent, temporary or casual). (h) (Pay records) Records of pay must include all of the following: (1) the rate of pay paid to the employee (2) the gross and net amounts paid and any deductions from the gross amount (3) the details of any incentive-based payment, bonus, loading, penalty rate, or other monetary allowance or separately identifiable entitlement paid. (i) (Hours of work records) Records relating to hours worked by employees are to include the following: (1) in the case of a casual or irregular part-time employee who is guaranteed a pay rate set by reference to time worked, a record of the hours worked by that employee (2) for any other type of employee, the record must specify the number of overtime hours worked each day, or when the employee started and finished working overtime hours (but only if a penalty rate or loading must be paid for overtime hours actually worked) (3) a copy of the written agreement if {org.name} and the employee have agreed to the employee taking time off instead of being paid for overtime worked (4) a copy of the written agreement if {org.name} and the employee have agreed to an averaging of the employee's work hours. (j) (Leave records) If an employee is entitled to leave, the record must include both: (1) leave taken, if any (2) the balance of the employee's entitlement to that leave from time to time. (k) If {org.name} and an employee have agreed to the employee taking a period of annual leave in advance of an accrued amount of leave, {org.name} must keep a copy of the agreement which: (1) states the amount of leave to be taken in advance and the date on which the leave is to commence (2) must be signed by {org.name} and the employee, and if the	
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employee is under 18 years of age, by the employee's parent or guardian. (l) If {org.name} and the employee have agreed to cash out an accrued amount of leave, {org.name} must keep: (1) a copy of the agreement to cash out the amount of leave (2) a record of the amount of leave to be cashed out and the payment to be made to the employee for it (3) the date on which the payment is to be made. (m) (Superannuation contributions records) If {org.name} is required to make superannuation contributions for the benefit of the employee, the record must include all of the following: (1) the amount of the contributions made (2) the dates on which each contribution was made (3) the period over which the contributions were made (4) the name of any fund to which a contribution was made (5) the basis on which {org.name} became liable to make the contribution, including a record of any election made by the employee (including the date) to have their superannuation contributions paid into a particular fund. (n) (Individual flexibility records) If {org.name} and an employee agree in writing to an individual flexibility arrangement in relation to an award or registered agreement, a record must include both: (1) a copy of the agreement (2) a copy of any notice or agreement terminating the flexibility arrangement. (o) (Annualised wage arrangement records) If an employee is on an annualised wage arrangement under an award, some awards require employers to keep extra records for these employees. (p) (Guarantee of annual earnings records) If {org.name} gives a guarantee of annual earnings under the <i>Fair Work Act 2009</i>, {org.name} must make and keep a record of: (1) the guarantee (2) the date of any revocation of the guarantee (where applicable). (q) (Termination record) Where employment is terminated, the record must include: (1) whether the employment was terminated by consent, by notice, summarily, or in some other manner (specifying that manner)	
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(2) if notice was provided and, if so, how much (3) the name of the person who terminated the employment. (r) (Record of risk assessed roles) {org.name} will keep a list of Risk Assessed Roles that a Worker engages in the {org.name} Human Resources Role Register. For each Risk Assessed Role, the list must include: (1) the title of the role; (2) the paragraph or paragraphs of the definition of risk assessed role (as contained in the National Disability Insurance Scheme (Practice Standards—Worker Screening) Rules 2018) that applies to the role; (3) a description of the Risk Assessed Role; (4) the date the role was assessed as being a Risk Assessed Role; and (5) the name and title of the person who made the assessment. (s) When a new risk assessed role is identified, or an existing role is reclassified as a risk assessed role, {org.name} must amend the written list of risk assessed roles within 20 business days of the identification or review of the risk assessed role. (t) (Human Resources Role Register) {org.name} must keep an up-to-date written list of each Worker who engages in a risk assessed role. This list must include: (1) the full name, date of birth and address; (2) the Risk Assessed Role in which the Worker engages; (3) if the Worker may engage in a Risk Assessed Role without an NDIS Worker screening clearance (the basis on which they may do so; the start and end date of their period the exception permits; the name of the person who supervises them during this period); (4) if the Worker may only engage in a risk assessed role with an NDIS Worker screening clearance (their NDIS worker screening check application reference number; their NDIS worker screening check number; expiry date of their NDIS worker screening check outcome; and whether their NDIS worker screening check is subject to any suspension or revocation). (u) {org.name} must keep an up-to-date written record of any personnel they engage through contractors, including: (1) a copy of the appropriate contract; (2) a record of the reasonable steps {org.name} has taken to satisfy	
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itself that the individual has a clearance; (3) a record about an allegation of any misconduct against an individual that {org.name} has engaged through a contractor with an NDIS worker screening clearance.	
4.8 Annual leave Subject to the Fair Work Act 2009 (Cth) and other applicable workplace legislation: (a) Full time permanent employees are entitled to 4 weeks annual leave per annum. (b) Part time permanent employees accrue annual leave on a pro rata basis. (c) Casual employees are not entitled to annual leave. (d) Employees must provide at least 6 weeks' notice if they take more than one week of annual leave to ensure that adequate arrangements are in place to cover their absence. For absences of less than one week, employees must provide one month's notice. (e) A leave roster for {org.name} will be established either manually or through {org.name}'s accounting software. (f) To apply for annual leave, employees must complete a leave form and have it approved by the Principal who is responsible for ensuring it is approved and recorded in {org.name}'s payroll system. (g) Annual leave is to be taken at a mutually agreed time between the employee and {org.name}. {org.name} reserves the right to refuse annual leave dates requested if there are insufficient workers available (either in the business or that are able to be sourced externally on reasonable commercial terms) to ensure continuity of business operations and services and support to clients. Requests for leave will not be unreasonably refused. (h) The measures above are intended to ensure: (1) day-to-day operations are managed in an efficient and effective way to avoid disruption and ensure continuity of support. (2) suitably qualified and/or experienced cover for workers on leave always exists whether through support from other workers employed or usually engaged by {org.name} or workers sourced externally to cover the absence. (3) in the event of worker absence or vacancy, a suitably qualified and/or experienced person performs the role. (4) each client has sufficient time to understand that changes or interruptions due to the taking of an employee's leave entitlement under law is unavoidable and the alternative arrangements are explained and agreed with the client. (i) Employees are expected to take their annual leave entitlement within 12 months of it falling due.	All workers

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(j) Where employees have accrued a significant amount (at least 6 weeks accrual) of annual leave {org.name} may direct them to take up an amount of annual leave that reduces the outstanding balance to 4 weeks. In the event of being directed to take annual leave, the employee will be provided with at least one month's notice of such direction.	
4.9 Personal leave Subject to the Fair Work Act 2009 (Cth) and other applicable workplace legislation: (k) Full time employees are entitled to 10 days personal leave for each year of service with unused personal leave accumulated from year to year. (l) Part time employees accrue personal leave on a pro rata basis. (m) Casual employees are not entitled to personal leave. (n) Unused personal leave is not paid out on termination. (o) Personal Leave is for use where the employee is unable to attend work due to: (1) Personal illness or injury (2) Caring for an ill or injured immediate family or household member. (f) The reference to "family or household member" includes spouse, de facto partner, child, parent, grandparent, grandchild, sibling; or a child, parent, grandparent, grandchild or sibling of the employee's spouse or de facto partner. (g) Employees are required to notify the Principal of their unavailability at the earliest opportunity, by phone. (h) This requirement is to allow {org.name} to arrange a replacement Worker including for the purposes set out in section 4.8(h) above. (i) The employee should also advise their likely return to work date to assist in determining what alternative arrangements, if any, need to be made in accordance with section 4.8(h) above. (j) On returning to work from personal leave, employees must complete a leave form and have it approved by the Principal who is responsible for ensuring it is approved and recorded in {org.name}'s payroll system. (k) Where the employee fails to provide advice of their absence within a satisfactory time they may not be paid for such absence. (l) {org.name} may require the employee to produce satisfactory evidence (doctors certificate or Statutory Declaration) for absences: (1) in excess of more than one day (2) where the employee has had more than 3 single day absences in any one year.	All workers
4.10 Other leave	All Workers

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(a) (Long service leave) Employees accrue Long Service Leave in accordance with the relevant State Legislation. (b) Employees may take Long Service Leave once they have accrued a pro rata entitlement in accordance with relevant state and Commonwealth legislation. (c) Leave may be taken in up to 3 separate periods with the minimum period taken being 4 weeks (d) Employees must provide at least 3 months' notice of their intention to take Long Service Leave so that arrangements to cover their position can be made and for the purposes set out in section 4.8(h). (e) To apply for long service leave, employees must complete the leave form and have it approved by the Principal who is responsible for ensuring it is approved and recorded in {org.name}'s payroll system. (f) (Compassionate leave) Subject to applicable laws, employees are entitled up to 2 days paid compassionate leave per occasion to spend with a family or household member who has sustained a life threatening illness or injury or in the event of death. (g) Employees may be required to substantiate with suitable documentation their reasons for their taking Compassionate leave. (h) To apply for Compassionate Leave employees must complete the leave form and forward it to their Principal who is responsible for ensuring it is approved and recorded in {org.name}'s payroll system. (i) (Parental leave) Employees with more than 12 months service with {org.name} immediately prior to the birth or expected date of birth of their child are entitled up to 12 months unpaid parental leave. (j) Parental leave is available to both parents in a relationship including de facto and same sex couples. (k) Eligible fathers are also entitled to up to 2 weeks paid Dad and Partner pay in the event of birth or adoption (paid by the government). (l) {org.name} does not offer extra paid leave that is not government funded. (m) Parents are entitled to up to 12 months unpaid leave but such leave can only be taken by one parent at a time in a single continuous period, except as provided in (d) below. (n) Such parental leave is only available if the employee has or will have responsibility for the care of the child. (o) An employee may take up to 3 weeks unpaid parental leave at the same time as their partner immediately after the birth of their child and no later than 6 weeks after the birth. (p) The mother can commence unpaid parental leave up to 6 weeks prior to the expected date of birth. (q) The partner can commence unpaid parental leave after the birth of the	
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child. (r) An employee must notify {org.name} by providing written advice of intention to take Parental Leave at least 12 weeks prior to the intended start date. Such advice to include the intended starting and end dates of leave. This is to permit arrangements to be made to cover the employee's role in accordance with section 4.8(h). (s) The employee must confirm their leave dates, or any changes, at least 4 weeks prior to the planned taking of such leave. (t) The mother must confirm in writing at least 8 weeks prior to their scheduled return to work that they are returning to work. This is to ensure that the person who is covering their position is provided with adequate notice, or if the employee is not returning to work arrangements can be made to cover their position. (u) Failure to confirm in writing that they are returning to work may mean that there is not an immediate position available for them. (v) The employee is entitled to return to their former position, or if that position no longer exists, an available position that is closest in status and pay to their former position and for which they are qualified and suited to perform. (w) You may be eligible for paid parental leave of up to 18 weeks' pay at the national minimum wage. Details of eligibility are determined by the Federal Government (https://www.humanservices.gov.au/individuals/services/centrelink/parental-leave-pay). (x) To claim paid parental leave, you must lodge a claim with Centrelink. This can be done online up to 3 months prior to the expected date of birth (https://www.humanservices.gov.au/individuals/services/centrelink/parenting-payment/how-claim). (y) The actual payment of Parental Leave is made by {org.name}, on behalf of the Federal Government, in the normal pay cycle. (z) Eligible working Fathers and Partners are entitled to up to 2 weeks government-funded paid leave in the event of birth or adoption of a child. The government determines eligibility and rates of payment. This link provides such details and how to claim (http://www.humanservices.gov.au/customer/services/centrelink/dad-and-partner-pay)	
4.11 Continuity of Supports (a) In the event of any unavoidable changes to support provision, for example, due to worker impairment or absence (due to planned and unplanned leave), the following care continuity plan will apply: (1) Step 1 - suitably qualified and/or experienced Workers performing other roles in the business, for example, other Workers or the Key Management Personnel (who are competent and have capacity to provide the support) will fill in on a temporary basis for the impaired or absent Workers and act in multiple roles.	Principal and Key Management Personnel

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(2) Step 2 (should Step 1 be or become unworkable or extend for more than a few weeks) - engage an external agency (such as Drake or Mabel) to provide short term assistance or otherwise recruit for the role. (3) Step 3 (should the impairment or unplanned absence become permanent) - Recruit a new Worker to act in the role. (b) Where changes or interruptions are unavoidable, all alternative arrangements are explained and agreed with the client.	
4.12 Annual Performance Reviews (a) {org.name} conducts annual performance reviews for each employee and other Worker that delivers services and supports. During these reviews, the Worker is required to fill out a self-evaluation form provided to them by {org.name} and arrange a meeting with the Principal to conduct the formal review. Through the formal discussion, the Principal aims to: (1) recognise if the Worker is good at their job (2) talk about career moves and employee motivations (3) identify areas of improvement. Performance reviews apply to Workers who have completed their probationary period. (b) If the Principal identifies a Worker's training needs in a specific area, they will discuss this with the Worker during the performance review and set up a training and improvement plan. (c) On-the-job training, job shadowing and other training methods are also appropriate when the Principal intends to promote an employee in the near future. (d) (Frequent communication) the Principal will meet with each employee and other Worker that delivers services and supports at least once per fortnight to provide formal feedback and talk about their work and motivations. This way, Workers can receive feedback in a timely manner and avoid surprises during their annual performance review. (e) During performance meetings, both parties should feel free to discuss any concerns they have. It is the Principal's responsibility to: (1) (Set clear objectives) Workers should know what {org.name} expects of them. (2) (Provide useful feedback) Give Workers guidance and praise, as appropriate and be fair and specific to help them understand and implement your feedback. (3) (Keep Workers involved) encourage two-way communication and make {org.name}'s expectations clear, while always taking the Worker's motivations and aspirations into account. Discuss training and development opportunities that may interest Workers.	All Workers

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(4) (Keep logs with important incidents about each Worker) logs help with evaluation.	
4.13 Managing unsatisfactory performance and workplace behaviour (a) Where the performance of an employee or a Worker delivering support or services does not meet a satisfactory standard, the first step taken should be informal counselling. {org.name} will provide the employee with details of the non-performance and an opportunity to improve within a set timeframe. Any support required to assist the employee should be discussed. (b) Where informal counselling does not produce the required outcomes, a more formal process should be entered into. This may involve a performance management plan that documents the issues and actions to be taken and review timeframes. (c) {org.name} will ensure that the process is fair. This includes ensuring that: (1) the standards of conduct or job performance required are made clear to the Worker; (2) the Worker is advised of the process in the event that satisfactory performance or conduct is or is not maintained; (3) the Worker is permitted to have a support person present at any performance management meetings; and (4) the Worker has an opportunity to respond and put forth their side of the story. (d) (Informal strategies) Depending on the nature and seriousness of the instance of underperformance, it may be adequate for the Principal to address underperformance via informal strategies before embarking on a formal disciplinary process with the Worker. Informal strategies may include: (1) Providing regular constructive feedback and monitoring performance. (2) Identifying training and development needs and arranging appropriate on or off-the-job training, coaching or support. (e) (Formal meeting) If the informal steps have been followed and performance has not improved or if the performance issues require a more serious intervention, a formal meeting to discuss underperformance will be held between {org.name} and the Worker. Common reasons for undertaking formal strategies include: (1) Not performing the job to a standard that is acceptable to the employer. (2) continually arriving late for work. (3) having a poor attitude towards management or fellow Workers.	Principal

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(4)unexplained or excessive absenteeism. (5)breach of occupational health and safety requirements. (6)negligence or failure to comply with {org.name} Policies. (7)refusal to comply with a lawful and reasonable instruction. (8)verbal abuse or other unacceptable conduct involving another person at work. (f){org.name} will: (1)keep thorough notes of the meeting and copies of any letters, emails or warnings, and sign and date these documents and will ask the Worker and any witnesses to do the same. If the Worker refuses, make a record of the refusal. (2)depending on the nature of the underperformance, give the Worker a reasonable period of time to improve their performance (typically 4-8 weeks depending on the circumstances). (3)regularly check-in with the Worker over that period to discuss how they are progressing. (4)Formally meet with the Worker again at the end of the period to review their performance. Should any conduct during the review period bring this process into disrepute, {org.name} reserves the right to initiate these discussions as soon as practicable. (5)If the Worker’s performance has improved enough, will formally close the process in writing, (6)If the Worker’s performance has not improved, consider taking further action, including termination of employment with notice.	
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5. General

5.1 Relevant Legislation, Regulations, Rules and Guidelines

Legislation, Rules, Guidelines and Policies apply to this Policy and Related Documentation as set out in the Legislation Register.

5.2 Inconsistency

If and to the extent that the terms of this Policy are or would be inconsistent with the requirements of any applicable law, this Policy is deemed to be amended but only to the extent required to comply with the applicable law.

5.3 Policy Details

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